
Responsible Commissioner Guidance - continuing health care

The following is general guidance on the responsible commissioner and reference should be made to the materials at the end of the document should cases seem to be of a complex nature and/or guidance sought from the CHC Lead or Legal Services.

Pre-April 2013

The placing CCG remains responsible for the NHS's contribution to the care, even where the person changes their GP practice (and associated PCT/CCG). Until 30 November 2010

These arrangements only applied where the care package include the provision of nursing care. However, for placements arranged from 1 December 2010, the arrangements apply regardless of whether nursing care forms part of the care package, except in cases where the only planned service is NHS-funded nursing care.

Where a patient is provided with NHS Continuing Healthcare in their own home and they decide to move house (not into residential care), then the responsible CCG will be governed by usual residence.

April 2013 onwards

The placing CCG remains responsible for the NHS's contribution to the care, even where the person changes their GP practice (and associated CCG), except in cases where the only planned service is NHS-funded nursing

Care in a nursing home or the service user independently moves to another CCG area, or the Local Authority moves them alone.

Where a patient is provided with NHS Continuing Healthcare in their own home and they decide to move house (not into residential care), then the responsible CCG will be governed by GP registration/usual residence.

Local Authority Responsibilities

In general, the Local Authority where a service user is ordinarily resident will be responsible for meeting care needs. Where a Local Authority places a service user in specified accommodation in the area of another Local Authority, the placing Local Authority remains responsible.

It must be noted that Ordinary Residence is a very complicated area of law, and any matters of a complex nature must be referred to the CHC Lead or Legal Services for guidance, particularly where cases span the National Assistance Act and the Care Act.

Service users moving out of 100% CHC funding

Where a person has been provided with NHS accommodation as part of a package of NHS CHC, then prior ordinary residence is retained, based on the local authority in which the person had been previously ordinarily resident. Therefore, where a person is placed in a care home (or other accommodation funded by the NHS) in another local authority area for the purpose of receiving NHS CHC, they continue to be ordinarily resident in the local authority area in which they were ordinarily resident before entering the NHS accommodation.

Where a person is accommodated in a care home as part of their package of NHS CHC, it is possible that they may cease to be eligible for NHS CHC, but still need to remain in their care home, or to be provided with accommodation elsewhere. In such a case, the local authority in whose area the person was ordinarily resident immediately before being provided with NHS accommodation would be the authority responsible for arranging care and support to meet the person's eligible needs, and for funding the person's accommodation, subject to any financial assessment.

Effectively if someone is in specified accommodation, which is defined as:

- i. nursing homes/care homes – accommodation which includes either nursing care or personal care
- ii. supported living/extra care housing, this is either:
 - o specialist or adapted accommodation: this means accommodation which includes features that have been built in, or changed, in order to meet the needs of adults with care and support needs. This may include safety systems and features which enable accessibility and navigation around the accommodation and minimise the risk of harm, as appropriate to the individual

- accommodation which is intended for occupation by adults with care and support needs, in which personal care is also available, usually from a different provider.
- iii. shared lives schemes - accommodation which is provided together with care and support for an adult by a shared lives carer, approved by the scheme, in the shared lives carer's home under the terms of an agreement between the adult, the scheme, the shared lives carer and any local authority responsible for making the arrangement. The shared lives carer will normally be providing personal care but they will not need to provide it in every case.

Then Ordinary Residence remains with the authority where the person was resident immediately before placement was made. That might be us if one of the Nottinghamshire CCG's placed and they lived in Nottinghamshire prior to placement, but otherwise OR will lie elsewhere.

Usual Residence

The main criterion for assessing 'usual residence' is the patient's perception of where they are resident in the UK (either currently, or failing that, most recently).

Ordinary Residence

Case law outlines "Ordinary Residence" as:

"A man's abode in a particular place or country which he has adopted voluntarily and for settled purposes as part of the regular order of his life for the time being, whether of short or long duration."

"Voluntary" only applies to those with capacity - it is irrelevant if the person lacks capacity.

Documents

The above guidance is derived from the following documents.

- Care Act Statutory Guidance
 - Who Pays 2007
 - Who Pays 2013.
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